

25NNCV00190 25NNCV00190

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-19

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Case Number: 25NNCV00190 Hearing Date: August 19, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

JOSE SILVA,

Plaintiff,

vs.

GEORGE STUDIO CATERING, INC.;

HORACIO VAZQUEZ MARTIN and DOES 1 to 100, inclusive,

Defendants.

Case

No.:

25NNCV00190

Hearing

Date:

August

19, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION FOR LEAVE TO INTERVENE

MOVING PARTY: Proposed Intervenor The Hartford

RESPONDING PARTY: Plaintiff Jose Silva

The Court

considered the moving papers, opposition, and reply filed in connection with the instant motion.

BACKGROUND

On January 10, 2025,

Plaintiff Jose Silva ("Plaintiff") brought this action against Defendants George Studio Catering, Inc. ("George Catering") and Horacio Martin ("Martin") (collectively, "Defendants"), alleging causes of action for motor vehicle and general negligence.

On July 10, 2025, George

Catering filed a cross-complaint against Does 1 to 100, alleging causes of action for (1) total equitable indemnity, (2) partial equitable indemnity, (3) contribution and repayment, and (4) declaratory relief.

On July 21, 2026,

Proposed Intervenor The Hartford ("Intervenor") filed the instant motion for leave to intervene.

On August 6, 2026,

Plaintiff filed an opposition.

On August 12, 2026,

Intervenor filed a reply.

REQUEST FOR JUDICIAL NOTICE

In support of its motion, Intervenor requests judicial notice of (1) the Declaration of Aaron Eslamboly in Support of Plaintiff's Application for Publication filed on March 13, 2026 and (2) Plaintiff's Request for Entry of Default filed on June 8, 2026.

Intervenor's requests for judicial notice are GRANTED pursuant to Evidence Code section 452, subdivision (d).

LEGAL STANDARD

Pursuant to Code of Civil Procedure section 387, subdivision (d)(1)(B), the court must allow a nonparty to intervene in an action upon timely application if "[t]he person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties."¿

The court also may allow a nonparty to intervene in an action upon timely application "if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Proc., § 387, subd. (d)(2).) "Intervention will generally be permitted if: '(1) the proper procedures have been followed[,] (2) the nonparty has a direct and immediate interest in the action[,] (3) the intervention will not enlarge the issues in the litigation[,] and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action.'" (Accurso v. In-N-Out Burgers (App. 2023) 313 Cal.Rptr.3d 51, 61, quoting City and County of San Francisco v. State of California (2005) 128 Cal.App.4th 1030, 1036.)

A nonparty who wishes to intervene shall petition the court for leave to intervene by noticed motion or ex parte application. (California Code of Civil Procedure § 387(c).) The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which the intervention rests. (Id.) Lastly, the petition for leave to intervene must be timely. (Id. § 387(d).)

DISCUSSION

Intervenor argues it has an interest in the current action that cannot be protected by another party because Intervenor will likely be subject to a direct action under Insurance Code section 11580, subdivision (b) by Plaintiff as judgment creditor for Martin. Intervenor argues it may be required to satisfy any default judgment entered against Martin, who currently resides in an unknown part of Mexico and is unreachable. Intervenor contends it has no other means that intervening to litigate liability or damages issues pertaining to Martin.

In opposition, Plaintiff argues Intervenor's attempt to intervene is untimely without sufficient explanation because Intervenor was aware of this litigation for over a year because Plaintiff attempted to serve Martin through Intervenor and did not seek to intervene until after Plaintiff filed for entry of default. Plaintiff argues that intervention would greatly prejudice him because he spent extensive efforts litigating this action while Martin and Intervenor remained absent. Plaintiff further argues that Intervenor has not shown how intervention is necessary as opposed to alternative avenues.

In reply, Intervenor argues that it did not unreasonably delay in seeking to intervene because the need to intervene only arose when default was entered against Martin on June 8, 2026. Intervenor contends it had no obligation to accept service on behalf of Martin.

The Court finds that Intervenor is entitled to intervene in this action. Intervenor demonstrates that Martin resides in Mexico with intent to stay there. (Johnson Decl., ¶ 2.) Intervenor does not have contact information with Martin and attempted to reach Martin by email to alert him to the request for entry of default to no avail. (Johnson Decl., ¶¶ 4-5.) This is confirmed by Plaintiff's process server. (Johnson Reply Decl., ¶ 4.) Under Insurance Code section 11580, a judgment creditor who secures a judgment against an insured based on bodily injury, death, or property damage may bring a direct action against the insurer to recover on the judgment. California courts have established that this exposure to direct liability gives an insurer a direct and immediate interest in the underlying action, making intervention appropriate to protect its interests in any subsequent direct action. (See *Gray v. Begley* (2010) 182 Cal.App.4th 1509, 1522; *Reliance Ins. Co. v.*

Superior Court (2000) 84 Cal.App.4th 383, 386-387; Travelers Property Casualty Co. of America v. Engel Insulation, Inc. (2018) 29 Cal.App.5th 830, 836.) Thus, the Court finds that Intervenor sufficiently establishes that it has a direct and immediate interest.

As to timeliness, while Intervenor was aware of this lawsuit, its interest would not have become necessary until Plaintiff sought default against Martin. "[T]he timeliness of a motion to intervene ... should be determined based on the date the proposed interveners know or should have known their interests in the litigation were not being adequately represented." (Ziani Homeowners Assn. v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.) On June 23, 2026, when Intervenor attempted to reach Martin by email to alert him of Plaintiff's request for entry of default and Intervenor did not get a response, Intervenor's interest would've become necessary. (Johnson Decl., ¶ 4.)

The Court also finds plaintiff has failed to establish prejudice. No trial date has been set and allowing Intervenor to participate does not alter the issues.

Accordingly, the Court GRANTS the motion for leave to intervene.

CONCLUSION

Based on the foregoing, the Court GRANTS Proposed Intervenor The Hartford's motion for leave to intervene.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 19, 2026

Sarah
J. Heidel

Judge

of the Superior Court